TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JANUARY 26, 2026
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Brian Stress, Cheryll Woods-Flowers, Joan Spier.
Staff: Michael Robertson, Matt Simms, James Ward, Michele Reed, Lynnette Lynes
Also: Ginny Bozeman, Board Legal Counsel

Mr. Wood called the meeting to order at 6:04 pm.

A. Approval of Agenda

Ms. Stevens moved for approval of the agenda. Ms. Spier seconded the motion. All in favor.

B. Approval of Minutes--December 1, 2025 and December 15, 2025

Ms. Woods-Flowers moved for approval of the minutes with the following correction:

- *December 15, 2025 Special meeting—Page 3, last paragraph—correct incomplete sentence on second line.*

Ms. Stevens seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or general correspondence, Mr. Wood closed public comment and continued with the agenda.

Ms. Woods-Flowers moved for approval to amend the agenda to move items H and I (explanation of procedures and administration of oath) to new items F and G. Ms. Stevens seconded the motion. All in favor.

E. Explanation of Procedures
F. Administration of Oath

▶ Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Executive Session for the Purpose of Receiving Legal Advice Related to Case A-01-26, 40 Patriots Point, TMS# 571-00-00-001

▶ *Mr. Branch moved to convene into executive session for legal advice related to Case A-01-26. Ms. Stevens seconded the motion. All in favor.*

The Board convened into executive session at 6:10 pm.

H. Post Executive Session—Board may take action on any item, including any subsection of any section, listed on an executive session agenda or discussed in an executive session during a properly noticed meeting.

The Board reconvened at 7:05 pm. No action taken while in executive session.

▶ *Mr. Branch moved to allow Mr. Ross Appel, representative for Patriots Annex, LLC and the Patriots Point Development to have the same presentation and rebuttal time afforded the applicant. Ms. Stevens seconded the motion. All in favor.*

I. Business

1. Case V-01-26, 716 Simmons Street, TMS# 532-06-00-168, Request relief from the strict application of the standards in Table §156.039-1 R2 Dimensional Standards to allow a six-point three (6.3) foot side yard for a proposed residential addition. The ordinance requires an eight (8) foot side yard.

▶ Mr. Simms reviewed staff comments with the Board.

▶ Mr. Christopher Klick, contractor, and Ms. Melissa Myrick, owner, reviewed the request with the Board.

▶ There being no comments, Mr. Wood moved to Board questions.

Mr. Wood closed public comment.

▶ *Ms. Stevens moved for denial based on the findings that the four criteria required to grant a variance has not been met, specifically that the denial would not prohibit the utilization of the property. Mr. Stress seconded the motion. All in favor.*

2. **Case V-02-26 , 735 Kent Street, TMS# 535-04-00-078,** Request for relief from the strict application of the standards in Table §156.039-1 R2 Dimensional Standards to allow ex post facto approval of a seven-point two (7.2) foot side yard for a proposed residential addition. The ordinance requires a ten (10) foot side yard. Correspondence

▶ Mr. Simms reviewed staff comments with the Board.

▶ Ms. Lonnie Evans, owner, reviewed the request with the Board.

▶ Mr. Brian Trenga, 664 Kent, suggested that this is a self-inflicted hardship as the property was not properly surveyed. He further suggested that given that the foundation survey did not pass inspection, the construction should have been halted until the issue was resolved, but that did not occur. He further stated that he has seen that construction continued after the stop order was issued.

▶ Ms. Evans rebutted that the addition was based on the location of the existing home.

There being no further comments, Mr. Wood moved to Board questions.

Mr. Simms stated that the property is not a non-conforming lot.

▶ Mr. Wood closed public comment.

▶ There being no objection, Mr. Wood re-opened public comment.

▶ Mr. Wood closed public comment.

▶ *Mr. Branch moved for denial based on the findings that the four criteria required to grant a variance have not been met, specifically that there are no*

extraordinary and exceptional conditions to the property. Mr. Stress seconded the motion. All in favor.

3. **Case A-01-26**, **40 Patriots Point Road, TMS# 571-00-00-001,** Appeal of Zoning Official's determination of zoning compliance with minimum standards of §156.320 Waterfront Gateway District-Cooper River Waterfront Gateway District as specified in the application. Correspondence

▶ Mr. Robertson reviewed staff comments with the Board.

▶ Ms. Deidre Kennedy, applicant, stated that the December 3, 2025 DRB minutes were not available until after the correspondence deadline. She asked that the Dec 3, 2025 and the June 2025 DRB minutes be submitted.

There being no motion to accept the additional documents, Ms. Kennedy continued with reviewing her request with the Board.

▶ Mr. Ross Appel, representative for Patriots Annex, LLC, suggested that the appeal is jurisdictionally improper and wrong on the merits of the case. He suggested that timeliness and standing are an issue. He suggested that notice started when the agenda stating the project was published, which was June 23, 2025; therefore, the appeal should have been submitted in early August 2025. He also suggested that state law indicates that standing is based on someone being aggrieved and it must be distinguishable from public good. He suggested that the appeal has not met timeliness and is jurisdictionally improper as the applicant does not meet standing requirements, so the appeal should therefore not be approved.

▶ Mr. Wood administered the oath to Mr. Adams.

▶ Mr. Robert Adams, 35 Eastlake Road, stated that in 2019 there were three parties that reviewed the Patriots Point project: the public, the Town, and Patriots Point. He suggested that the plan agreed upon at that time is not the same as what has been subsequently presented. He suggested that Ms. Kennedy is an aggrieved party and should be allowed to bring this appeal. He suggested that the grand lawn and public walkway should be created and

constructed as originally presented. He asked that the appeal be upheld and the rights of the public upheld.

▶ Mr. James McKee, 1247 Palmetto Peninsula Dr, suggested that a key point in the Waterfront Gateway was access to the waterfront for the public. He suggested that if not "constructed correctly" then those areas included in the Waterfront Gateway might not come to fruition. He suggested that these details should be included in the final plans being approved by all entities. He also suggested that the initial grand lawn and walkways have been pushed out to the periphery of the plans and is no longer a main feature as originally shown.

▶ Ms. Michelle Stress, 545 Veranda View, suggested that at the December 3, 2025 DRB meeting were not available until over 7 weeks later. She further stated that correspondence for this meeting not published and available at the meeting as it was not received by the deadline. She suggested that the public are taxpayers and are aggrieved parties. She suggested that the plans have continually changed and the grand lawn and walkways have been "whittled away". She asked that the letters be submitted.

▶ *Mr. Stress moved for approval to submit the correspondence to the Board.*

▶ Mr. Pagliarini raised a point of order and objected to Mr. Stress' motion due to a conflict of interest as the speaker and Mr. Stress are married. He suggested that the motion is improper and should not be allowed. He further suggested that Mr. Stress should recuse himself.

Mr. Wood stated that the motion would not be entertained as it was an improper motion.

Mr. Stress recused himself due to a conflict of interest.

▶ Ms. Stress read the letters for the record as part of her public comment.

▶ Ms. Lisa Schnipke, 185 Mossy Oak Way, stated that she has followed the approval process of the Patriots Point project since its inception. She suggested that the current plans show a "shrinking" of the public areas of this plan. She suggested that these areas should be protected. She stated that she

has spoken to the DRB in June and in December, stating that the wildlife and public areas should be preserved. She stated that she agrees with Ms. Kennedy.

- Mr. David Quick, 1502 Village Square, stated that the waterfront area is a valuable asset. He suggested that the view of the harbor and the walkways should be protected and preserved. He suggested that all of the harbor areas should be preserved. He suggested that the areas of the grand lawn and the walkways should be preserved. He suggested that all aspects of the Waterfront Gateway should be supported and this project should include all of those aspects.

- Mr. James Wilson, attorney for Patriots Annex, suggested that plans meet the requirements of the Waterfront Gateway. He suggested that the walkways and pedestrian connections are shown on the current plans. He stated that staff has explained that the recorded easements would be required later in the approval process. He suggested that the appellant has not provided specific instances where the plan does not meet the Waterfront Gateway requirements. He suggested that the plan meets all requirements and the appeal should be denied.

- Mr. Wood moved to rebuttals.

- Mr. Robertson rebutted that all advertisement and notice requirements were met and follow State and Town requirements, including the deadline to receive correspondence.

- Ms. Kennedy rebutted that the appeal is timely as publishing the agenda is not a Zoning Administrator determination and therefore is not when notice starts. She suggested that the written determination on December 24, 2025, from the Zoning Administrator is the first instance of notice and should be when the 30-day notice and appeal timeline would begin. She also stated that the state does not stated that an aggrieved party has to live within a certain distance. She suggested that the appeal concerns compliance with mandatory waterfront gateway district compliance, waterfront access and open space, integrated pedestrian connections, streetscapes and waterfront access consistent with public interest. Because the property was purchased with tax dollars and the Waterfront Gateway district was adopted to ensure

meaningful public waterfront access and other public benefits consistent with the Comprehensive Plan, she suggested that as a citizen she has standing and is aggrieved. She also suggested that the 2023 DRB plan is the governing master plan.

- Mr. Appel rebutted that with timeliness there must be a definitive timeframe. He suggested that the definitive time for actual notice for the Town of Mount Pleasant would be publishing the agenda with the plans linked and therefore, notice was provided in the summer of 2025. He stated that aggrievance of a zoning appeal matter must be an individualized, discreet, personal, unique interest in a manner, not just a general concern or interest. He stated this was established with the implementation of the SC Planning act of 1994 and adoption of the Town's Code of Ordinances.

- Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Wood moved for denial of the submittal of the appeal as Ms. Kennedy does not meet the statutory definition of an aggrieved party to bring this appeal. Mr. Branch seconded the motion. All in favor with Mr. Stress abstaining.*

- *Mr. Wood moved for denial of the appeal as the appeal was not submitted within the time restraints and should be denied on that basis. Mr. Branch seconded the motion. All in favor with Mr. Stress abstaining.*

- *Mr. Wood moved for denial of appeal and to uphold the Zoning Administrator's determination based on the facts in evidence at this meeting. Ms. Stevens seconded the motion. Motion passed on a 5 to 1 vote with Ms. Woods-Flowers, Mr. Branch, Ms. Spier, Ms. Stevens, and Mr. Wood in favor; Mr. Barrow opposed; and Mr. Stress abstaining.*

J. Adoption of Rules of Procedure

- Mr. Robertson reviewed the changes to the rules of procedure with the Board.

- *Ms. Stevens moved for deferral of the rules of procedure. Mr. Barrow seconded the motion. All in favor.*

K. Election of Officers

- The Board voted for Mr. Wood as chair and Ms. Stevens as vice-chair by secret ballot.

There being no further business, the meeting adjourned at 9:13 pm.

Submitted by,
L. Lynes
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